

2.	2023-1320424 Cardenas Villegas vs. American Honda Motor Co., Inc.	Defendant American Honda Motor Co., Inc. seeks an order striking or taxing plaintiffs Juan and Maricela Cardenas' costs is denied. [ROA #109.] <u>Facts</u> This was a Song Beverly action. It was filed on 4/18/23. [Complaint (ROA #2).] On 2/13/24, Defendant served Plaintiffs with a 998 offer for \$100,000 and attorneys' fees of either \$15,000 or pursuant to motion. [Workman Decl. (ROA #109), ¶ 3 and Ex. A.] Plaintiffs did not accept this 998 offer. [<i>Id.</i>] Over year later, on 9/11/25 Defendants served Plaintiffs with a second 998 offer for \$100,000 and attorneys' fees pursuant to motion. [<i>Id.</i>, ¶ 4 and Ex. B.] Plaintiffs accepted this offer on 10/9/25. [<i>Id.</i>] Plaintiffs filed a notice of settlement on 10/9/25. [ROA #93.] On 5/1/25, Plaintiffs filed a memorandum of costs seeking to recover \$11,703.54 in costs. [ROA #101.] <u>Legal Standard</u> The prevailing party in any civil action is entitled to recover costs as a matter of right. Code Civ. Proc. §1032. To claim those, the prevailing party must file and serve a memorandum of costs within 15 days from the date the clerk (or any party) mails out notice of dismissal or entry of judgment. CRC 3.1700; <i>Daniels v. Robbins</i> (2010) 182 Cal.App.4th 204, 228. The memorandum must include a supporting declaration affirming that the costs were reasonable and necessarily incurred. CRC 3.1700(a)(1). No proposed judgment is required in order to perfect the memo of costs. <i>Fries v. Rite Aid Corp.</i> (2009) 173 Cal.App.4th 182, 185. If the items in the cost bill appear on their face to be proper (by comparing the cost bill to the list of recoverable costs in CCP §1033.5), the verified memorandum of costs is <i>prima facie</i> evidence of their propriety. The burden then rests with the party seeking to tax costs to show they were improper, unreasonable, or unnecessary. <i>Benach v. County of Los Angeles</i> (2007) 149 Cal.App.4th 836, 856. If the party seeking to tax costs makes a proper objection to an item in the cost bill (as determined after the trial court reviews the submissions), the burden then shifts back to the party claiming them as costs. <i>Acosta v. SI Corp.</i> (2005) 129 Cal.App.4th 1370, 1380. The propriety of costs is a question of fact to be determined by the trial court. <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266. An order denying a motion to tax costs, in whole or in part, means
----	--	--

		that the moving party must pay the costs allowed. <i>Krikorian Premiere Theatres, LLC v. Westminster Central, LLC</i> (2011) 193 Cal.App.4th 1075, 1084. <u>Discussion</u> Code of Civil Procedure section 998(a) provides that “[t]he costs allowed under Sections 1031 and 1032 shall be withheld or augmented as provided in this section.” Defendant argues that under section 998 Plaintiffs cannot recover costs incurred after the first 998 offer because they did not do better than that offer when they accepted the second 998 offer. Code of Civil Procedure section 998(c)(1) provides: If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs But case law addressing issues created when multiple 998 offers are served on the same party have found that as a matter of contract law, where the first 998 offer is not accepted, a second 998 offer extinguishes the first offer. <i>Wilson v. Wal-Mart Stores</i> (1999) 72 Cal.App.4th 382, 391 (“the legislative purpose of section 998 is generally better served by a bright line rule in which the parties know that any judgment will be measured against a single valid statutory offer”). <i>See also Varney Entertainment Group v. Avon Plastics</i> (2021) 61 Cal.App.5th 222, 235 (finding defendant's offer to enter into a stipulated judgment on breach of contract cause of action extinguished defendant's pending C.C.P. 998 offer that covered all causes of action). Defendant has provided no discussion or explanation why this authority would not apply here. Accordingly, the motion to strike or tax Plaintiff's costs is denied.
3.	2023-1363467 Manoussi vs. Sterling Infosystems, Inc.	Before the Court is Plaintiffs Azadeh Manoussi and Kaveh Vakilzadeh's Motion to allow them to withdraw from arbitration pursuant to CCP § 1281.97(b)(l) and for monetary sanctions. The Court, however, only sees the Notice of Motion filed as ROA 131. There does not appear to be a memorandum of points and authorities filed. Nor does the Court see the referenced Declaration of Tyler M. Vance. It appears that these documents were properly and timely served, as the opposition is made on the merits.